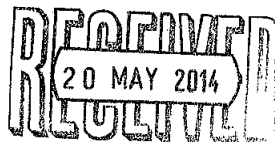
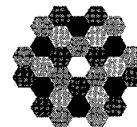


Correspondence between the Land Registry and CMC on Communal Land Transfer

Land Registry
Gloucester Office



DX

Robert Lunn & Lowth
DX700741
STRATFORD UPON AVON

Date
19 May 2014

Your ref
ECJ/COURTYARD

Our ref
BM388451/T/028/WK/GL CT07

Proprietor/Applicant **Courtyard Management Company (Rock Lane Farm) Limited**

Title number **BM388451**

Property **The Courtyard Liscombe Park**

Dear Sirs

I refer to your above application to register the land shown hatched grey in the Transfer of Part dated 1 April 2014, enclosed herewith.

The land being transferred is shown edged red (excluding the land tinted green) on the attached illustrative print which is based on the latest Ordnance Survey map in our possession. Several points arise:

- a) The part of the roadway shown tinted brown on the illustrative plan falls outside the red edging of the vendors title and is not registered. This area of land will be limited from your clients registration.
- b) The land shown tinted pink on the attached illustrative plan has already been removed from the vendors title and is now registered under title BM323391. This area of land will be limited from your clients registration.
- c) The land edged and numbered 1 in blue is registered leasehold at first and second floor level. The leases are registered under titles BM327884 and BM330735. If the whole of the land edged and numbered 1 in blue is to be included in your clients registration, the leases will be noted against the title.
- d) The land edged and numbered 2, 3 and 4 in blue form parking spaces registered leasehold under titles BM325313, BM327884 and BM330735. The leases will be noted against

Land Registry
Gloucester Office
Twyver House
Bruton Way
Gloucester GL1 1DQ

DX 7599 Gloucester 3

Tel 0300 006 1111
Fax 0300 006 0050
gloucester.office
@landregistry.gsi.gov.uk

www.landregistry.gov.uk

your clients title.

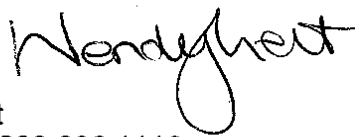
- e) When the plots on this development were transferred out of the vendors title, BM308821 in 2007 and 2008, no fencing was shown on the Ordnance Survey map, and the title plans were prepared based on the extents shown on the transfer plans. When the fencing was subsequently erected, it did not agree with the positions shown on the transfer plans. You can see from the attached illustrative plan, which shows the position of the fencing on the ground, the discrepancies. The areas tinted blue were not included in the plot transfers and remain in the vendors title, but they now form part of the garden areas of the plots. Also, the roadway on the northern part of the estate is shown in a different position. The areas tinted blue **can** be included in your clients title, as they do fall within the vendors title, BM308821, but I thought I should bring the discrepancies to your attention.

Please consider the above points. If I do not hear from you by **16 June 2014**, we will complete your clients application as specified in each point and the areas of land tinted blue will be included in the registration.

Please note, these are preliminary points raised in relation to the title plan, other requisition points may arise at a later stage in processing your application.

If you would like to discuss this correspondence or require it in an alternative format please contact me, quoting our reference.

Yours faithfully



Wendy Kent
Direct line 0300 006 1116

Land Registry Illustrative Plan :

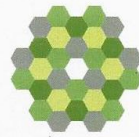
Land Registry Illustrative plan

Title number **BM388451**

Ordnance Survey map reference **SP8825SE**

Scale **1:1250** enlarged from 1:2500

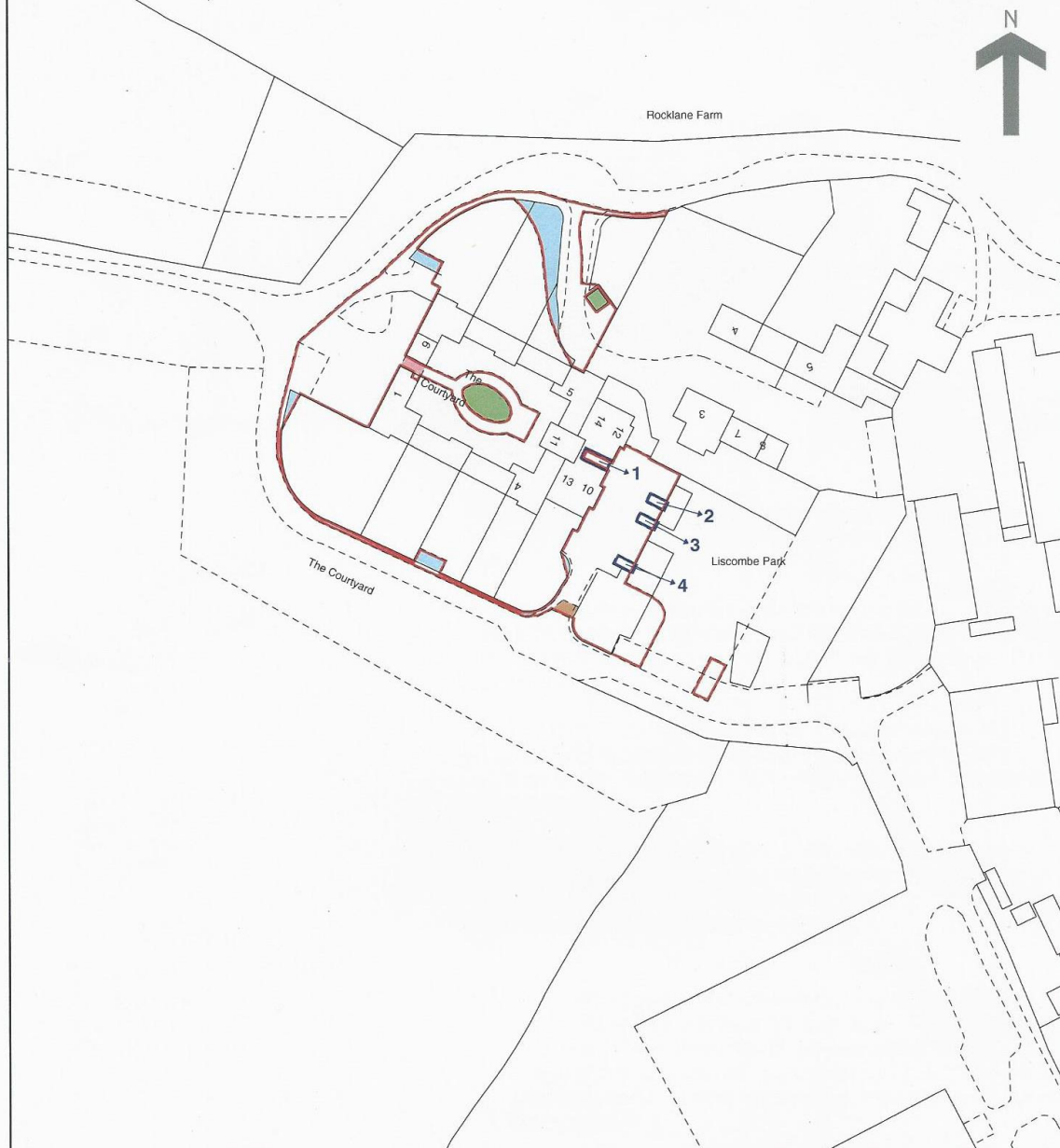
Administrative area **Buckinghamshire: Aylesbury
Vale**



© Crown copyright and database rights 2014 Ordnance Survey 100026316.

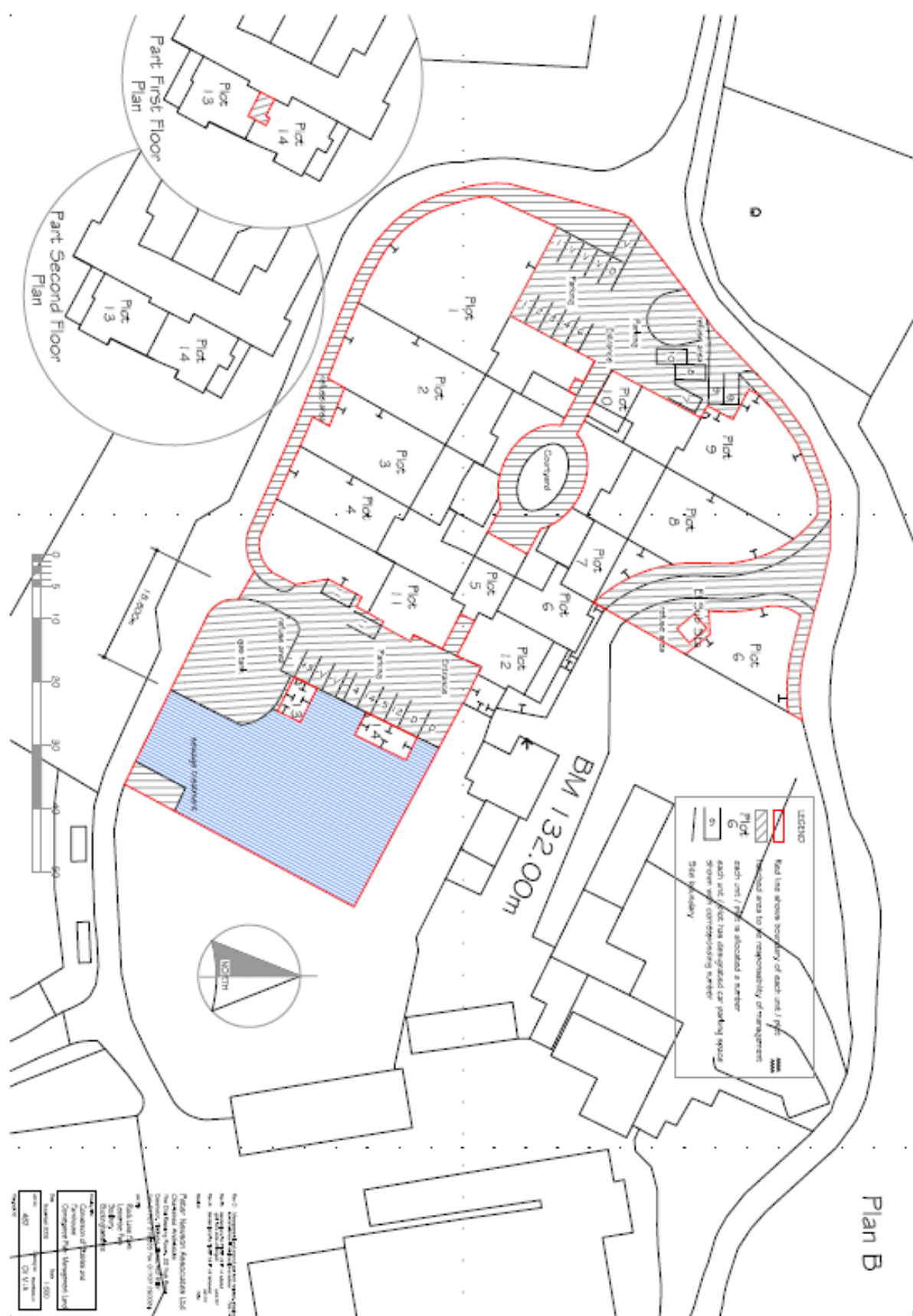
You are not permitted to copy, sub-license, distribute or sell any of this data to third parties in any form.

This is the plan referred to in the accompanying letter dated 19/05/2014 Title no. BM388451



This plan shows the general position, not the exact line, of the boundaries. It may be subject to distortions in scale. Measurements scaled from this plan may not match measurements between the same points on the ground. See Land Registry Public Guide 19 - Title Plans and Boundaries.

Thameside Communal Land Transfer Plan



The Courtyard Management Company (Rock Lane Farm) Limited

c/o The Old Stables, Dean Farm Lane, Soulbury, Bucks LU7 0DE

email : jdpope@btinternet.com Tel 07799 764964

Ms Wendy Kent
Land Registry
Gloucester office
Twyver House
Bruton Way
Gloucester GL1 1DQ

Dear Ms Kent

Proprietor / Applicant : The Courtyard Management Company (Rock Lane Farm) Limited

Title Number : BM388451

Property : The Courtyard Liscombe Park

Your ref : BM388451/T/028/WK/GL CT07

For Attn of : Ms Wendy Kent

I refer to your letter of 19 May 2014 addressed to our solicitors Messrs Robert Lunn & Lowth with comments and an illustrative plan in respect of the application to register the land shown hatched grey in the Transfer of Part dated 1 April 2014. I write as Company Secretary of the Applicant/Transferee on the advice of our solicitor who has suggested that I have a better grasp of the fine detail of this matter to assist your enquiry.

Please note that the Transferee [The Courtyard Management Company (Rock Lane Farm) Limited] is the management company which will now hold the transferred communal land and assets on behalf of the 14 residents of the Courtyard development, who are its members and shareholders, as established under Deed of Covenant. There is therefore a close alignment of views on all the matters you raise between the management company and the residents themselves. Where a matter concerns both the management company and individual residents, I can confirm that there is a common and agreed view among all residents on these matters as set out in this letter.

To respond to your comments in order.

a) The Transferee notes your explanation and is content for the part of the roadway tinted brown on the illustrative plan to be excluded from the registration.

b) The Transferee was not aware that the land tinted pink had already been transferred and registered under title BM 3233391, which it assumes is the freehold title of Unit 9 (shown as Plot 10) the freehold property of Mr Dean McCann ? Could you please confirm this title ownership. We believe there may be some confusion arising here as a result of the fact that the pink hatched area exists at both ground and upper level and comprises the archway entrance to the Courtyard with part of the domestic accommodation of Unit 9 as a flying freehold above it.



You will see from the above photo the layout of this part of the building. Mr McCann's title is to the left and above the archway in this photo. This archway is the only and common point of pedestrian access for all residents into this development, so we were surprised to learn that this had been previously transferred by the Transferor (Thameside Construction Ltd – the original developer) to another owner. You will note that they have included it for transfer to us on the TP1 transfer plan of 1 April 2014 which they drew up and certainly intend to transfer it to us. We wonder if some confusion has arisen as a result of the different levels at which this area exists? If the ground level has indeed been incorrectly registered to Title BM3233391, could you please confirm that a right of way for all residents/visitors has been included?

c) The land edged and numbered 1 in blue comprises the communal entrance hall and staircase for the four properties accessed at this point. The leases should be noted against our title as you propose please.

d) The land edged and numbered 2, 3, and 4 in blue are the car parking spaces assigned to the three leasehold owners you specify and again should be noted against our title as you propose please.

e) The Transferee agrees with your analysis of the reasons for the discrepancies you have identified. There are indeed differences between the transfer plans and the positions of fencing erected by the developer. With your agreement the Transferee is content to resolve the issues identified as follows. The areas tinted blue do indeed form parts of the respective gardens of the adjacent plots as marked on your plan and the original developer and individual residents clearly understand this to be the case. The Transferee does not intend or require to retain these as part of the land now being transferred to it and suggests that the boundary markings should be re-drawn to amalgamate these areas with the respective plot gardens. This would then coincide with the positions of fences on the ground and what the individual residents involved were assured by the developer had been transferred to them. There have been numerous other incorrect details/paperwork in the developer's transfer dealings and it is not surprising to us that these issues have been left unresolved. The roadway and right of way on the northern part of the estate was relocated in 2007 by the developer with agreement from the Local Planning Authority in order to create gardens contiguous with plots 5, 6, 7 and 8 as designated on the transfer plan of 1 April 2014. Its precise position on the ground is approximately as shown on the transfer plan of 1 April 2014. The Transferor has assured us that this portion of roadway edged by plots 8, 7, 6, and 5 on either side is part of its title and that it is intended to be transferred to us as part of this transfer. The developer granted rights of way over this roadway to the adjacent cottages on the north side of our property in return for them contributing a fair share to its upkeep and repair and this should presumably therefore be noted against our title.

In addition to the above points, we wish to bring to your attention two further discrepancies which we have noticed from your illustrative plan.

The two areas of garden marked as 13 and 14 on the transfer plan of 1 April 2014 were sold to the leasehold owners of those numbered apartments by the developer. However the freehold of these garden areas was retained by the developer as part of its freehold ownership of the Farmhouse building which accommodates the leasehold units 10, 12, 13 and 14. The developer has previously told our client that the freehold of these garden areas is included in the title being transferred on 1 April 2014 and so the red boundary edging for the transfer should therefore include these areas please.

With regard to the green shaded area at the centre of the Courtyard, this is just a grass ellipse with a tree in the centre of it. You can just see it on the above photo through the archway. We were expecting this to be transferred as part of the communal land as detailed by the developer and know of no reason why it would not be.

I'm sorry that there now appears to be so much to sort out in respect of this transfer, but that has been our experience over the past 7 years in trying to obtain a correct transfer from the developer.

Please let me know how you are able to proceed in the light of these comments. Please note that I am abroad from 14 – 24 June but I hope to be able to see emails at jdpope@btinternet.com should you require a further response in that timescale.

Thank you.

Yours sincerely

Jonathan Pope

Company Secretary
The Courtyard Management Company (Rock Lane Farm) Limited



THE OLD STABLES
DEAN FARM LANE
SOULBURY
BUCKS
LU7 0DE

Sent by e-mail

Email sent to:
jdpope@btinternet.com

Date
11 June 2014

Your ref

Our ref
BM388451/T/028/WK/gl ct07

Proprietor/Applicant **Courtyard Management Company (rock Lane Farm) Limited**

Title number **BM388451**

Property **The Courtyard Liscombe Park**

Dear Mr Pope,

I refer to your correspondence received today and our subsequent telephone conversation.

I respond to the points raised in your letter:

- a) Agreed, the part of the roadway tinted brown on plan attached to letter 19.5.2014 will be excluded from the new title.
- b) The land tinted pink on plan attached to letter 19.5.2014 was included in the transfer dated 5 January 2007 made between (1) Thameside Homes Limited and (2) Dean Emmanuel McCann. The transfer demised the land edged red on the plan attached thereto, and no mention was made of any floor levels being excluded. The rights reserved out of the property in this transfer did not refer to a right of way over the ground floor of any of the land transferred. If it was not the intention to transfer the ground floor of the land tinted pink on plan attached to letter 19.5.2014, it would need a transfer to be drawn up between the parties (Thameside Homes Limited and Dean Emmanuel McCann).
- c) I have checked the files and the leases of plots 11, 12, 13 and 14 do not include any of the communal entrance hall or staircase. I note the plan attached to the Transfer dated 1.4.2014 has inset plans showing the first and second floors. On this basis, I think we can assume only the ground floor is included on the main plan and hatched area at first floor level on inset plan. Therefore a note will be added to the new title

Land Registry
Gloucester Office
Twyver House
Bruton Way
Gloucester GL1 1DQ

DX 7599 Gloucester 3

Tel 0300 006 1111
Fax 0300 006 0050
gloucester.office
@landregistry.gsi.gov.uk

www.landregistry.gov.uk

stating only the communal entrance hall and staircase at ground and first floor level is included in the title. The leases will not affect and will not need to be noted.

- d) Agreed, the leases of the car parking spaces shown edged and numbered 2, 3, and 4 in blue on plan attached to letter 19.5.2014 will be noted against the new title.
- e) If it is the intention that the additional garden areas shown tinted blue on plan attached to letter 19.5.2014 are to be registered with the plots in which each of the gardens areas are fenced with, it will be necessary for further transfers to be drawn up between Thameside Homes Limited and each of the corresponding registered proprietors of the affected plots. Then a revised plan would be necessary in the Transfer dated 1.4.2014 to exclude the areas tinted blue.

As to the roadway on the north of the development, only part of the roadway can be included in the new title, as part of it (shown outside the red edging on the plan attached to letter 19.5.2014) is currently not within the demise of the Transfer 1.4.2014 and has been transferred out of Thameside Homes Limited title, BM308821. This land is now registered with plot 6 under title BM330105. If, due to the revised layout, the Transfer plan of BM330105 was incorrect, a further deed will need to be entered into by the parties Thameside Homes Limited and John Albert Ravenscroft Jeffers and Valerie Jeffers.

As to the additional points raised in your correspondence, regarding more areas to be included in the transfer dated 1.4.2014 (2 garden areas marked 13 and 14 on the transfer plan and the grass area in the middle of the courtyard), the plan to the Transfer dated 1.4.2014 will have to be amended to include these areas in the demise, by including them within the grey hatching and any amendment will need to be signed by all parties to signify their agreement.

I will send a copy of this letter to your solicitors, Robert Lunn & Lowth for their consideration.

If you would like to discuss this correspondence or require it in an alternative format please contact me, quoting our reference.

Yours sincerely

Wendy Kent
Direct line 0300 006 1116

Dear Ms Kent

Thanks very much for your prompt reply. We now understand all the issues arising and your comments on possible solutions are very useful.

We will consider all this carefully and discuss with our solicitor and the residents. This process will take a couple of weeks at least and I will come back to you with a detailed response as soon as possible.

Thanks.

Jonathan Pope
Company Secretary - The Courtyard Management Company (Rock Lane Farm) Limited

Email to J Pope from our Solicitor :

Hi Jonathan

The transfer is not complete until registration process has been completed. Realistically I would expect Thameside/their solicitors would argue that the transfer concludes the matter from their side of things. They will probably resist any attempt to discuss it further. However as your correspondence with the Land Registry and their response amply demonstrates there is quite a lot of overlap and detail which may need tidying up and which I think you could properly request Thameside to respond to.

Kind regards,
Yours sincerely

Robert Lunn & Lowth

(14-24th June – J Pope abroad.)

From: nigelhallam53@msn.com
To: gloucester.office@landregistry.gsi.gov.uk
Subject: Plot 9, 8 The Courtyard, Rocklane Farm, Liscombe Park, Soulbury, Bucks LU7 0GY
Date: Mon, 16 Jun 2014 20:52:46 +0100

For the attention of Wendy Kent:

Hello,

I write in response to your e-mail to Jonathan Pope of the Courtyard Management Company (Rocklane Farm) Ltd, with regard to Title Number BM388451 dated 11th June.

Mr Pope has made me aware of a problem with regard to the boundary of my property. I attach both a copy of the Land Registry Plan that you sent to Mr Pope and a copy of the TP1 that I signed at the time of my purchase.

I have looked closely at both of these plans and the fenced in area on the ground. Whilst I understand that your plan only shows the general position of the boundary, I believe that the plan on my TP1 represents where the boundary fence actually is.

Since I believe that the TP1 is the legal document that the transfer of land is based upon, I don't understand how the Land Registry plan can be significantly different. I would appreciate your comments on this. I will call you on Tuesday morning to discuss this if that is convenient.

Best regards
Nigel Hallam

From Nigel to Jonathan :

Hello Jonathan,

This is the email I sent to Wendy Kent.

When I spoke to her, she confirmed that at the time of the conveyance the OS of the area did not include the fences, so the Land Registry just placed them where they were on our TP1s.

When I asked her to look closely at the west corner of my garden she agreed that my TP1 more closely represented where the fence actually is than her plan.

She checked the records and apparently since 2008, the OS have issued a new survey of the area which corrected the position of the whole courtyard building by a few feet.

This is what caused the dogleg in my fence on their plan.

She accepted that this was incorrect and has issued a new plan which removes the large blue section at the west end of my garden.

Unfortunately this does not resolve the issue of the blue sections at the northern end of my garden, Bart's and Alan's gardens.

I am sure that this error was caused by the incorrect placement of the road on the TP1s supplied by Thameside.

I will get you a copy of the new plan when I am back at work on Wednesday.

By the way, I think that we should try to get a look at Dean's TP1. All of our plans appear to be the same except for the area bounded in red.

If Dean's is the same as all of the others, I think it will show that he only owns the area to the north of the archway.

If that is the case then this major problem could easily be resolved.

Speak to you when you get back.

Regards
Nigel

CMC to the Land Registry :

Dear Ms Kent

I have now returned from abroad and found on arrival your letter and revised illustrative plan following your conversation with Mr Hallam. I note from this that you have identified a discrepancy in the correlation between the OS plan and the other title plans being considered by the Land Registry in this case. In particular I understand you have agreed with Mr Hallam that that part of his title relating to the rectangular space off the car park is determined in his favour.

This is all very helpful and I would now like to work closely with you to resolve the other outstanding issues as soon as possible to suit your timetable.

The discussion with Mr Hallam leads me to enquire whether some or all of the other discrepancies in title may also have arisen as a result of subsequent changes in the OS mapping rather than errors in the original TR1 title plans which would have been based on the available OS data at the time (2006-8)? I wonder if you could kindly review the relevant plans to see if you find this to be the case. It is also now entirely clear to us that the ownership of the pink hatched land in the archway was intended to be transferred to the management company, as all the other residents received a transfer plan from Thameside showing this intended transfer as part of their respective conveyances paperwork. Could you therefore please check your copy of the TR1 plan for this property (Unit 9 (Plot 10) in the title of Mr Dean McCann, and let me know if it has been incorrectly registered due to the confusion over the ground level and the flying freehold.

If this re-checking does not enable you to resolve these matters, we will then indeed arrange for each freehold owner to raise the matter with Thameside's solicitors and resolve it that way. But that will of course take longer.

I am now locked up during the next 8 days in a windfarm Appeal enquiry, but I will try to call you on Monday during an adjournment to take your view on this if I may.

Many thanks.

Jonathan Pope
Company Secretary – Courtyard Management Company

From CMC to the Land Registry :

Dear Ms Kent

Further to my email of 26th June, I've now obtained further information regarding the access Archway to the Courtyard (the pink hatched area) and how the problem with this part of the transfer may have arisen. I believe this may enable you to resolve this detail without requiring us to go through a lengthy set of legal actions on this.

I've discussed the matter with Mr McCann and he confirms that he agrees it was never the intention to transfer the ground floor area of the Archway to his title and that this should have remained communal land to be transferred to the management company. This appears to accord with the title documents he has (see below) and he is willing to write to you to confirm this if needed.

He has provided me with copies of his conveyance documents and I believe these show how the mistake has arisen.

I have scanned and attach for you here the relevant plan pages. I assume you have access to these full documents on your system, but if not I can send you the full paper copies including all text.

1. Land Registry Document **OS2R Certificate Date 13 Feb 2007 Official Search No 219-BH-RK** issued to Mr McCann's solicitors includes a plan which clearly shows the red boundary line with a break in it at the outer and inner entrance of the Archway and the area is also marked with a diagonal cross. I have not found any text reference which explains this break or

diagonal marking, but assume that it is intended to show clearly (?) that this area of land includes a throughway at ground level and is to be treated differently from the other red hatched area. I assume therefore this was an inadequate (?) attempt to confirm a flying freehold of the area above separate from the ground level beneath.

2. The **TP1** document for Mr McCann's title to Plot 10 dated 1 January 2007 incorporates two plans, one showing the red outlined area of the plot and the other showing the land to be retained as management land. I attach the relevant parts of each A2 plan. The first seems to have an almost continuous red boundary line on the plot (although if you enlarge it you'll see a slight break in the outer line) but it also included within this area the diagonal grey hatching which is used to denote the communal land as shown on the second plan. The second plan clearly shows what the communal land is intended to be and confirms that the ground level area of the Archway is included in the communal land and therefore cannot be included in the plot 10 title. Taken together I believe that these two plans confirm that the ground level communal land is not included in the Plot 10 Title. I think the OS2R plan makes this clear too. I suggest that the mistake over your "*pink hatched area*" arises from these clerical inaccuracies/confusions.

May I ask you to study these plans together with an **OS2R Certificate Date 3 Jan 2007 Official Search No. 190-BH-GK** and **OS2R Certificate Date 26 March 2007 Official Search No 248-BC-HB** for which Mr McCann had the texts but not any attached plans. I assume you should find that these plans correspond with item 1 listed above and support this interpretation.

Please let me know what you think. You can email me or reach me on 07799 764964 should you need to discuss anything.

I believe that given all this confusion above and the correction recently issued to Mr Hallam regarding one of his "*blue hatched areas*", it may also be the case that the other "*blue hatched areas*" problems we've discussed may arise from discrepancies between the OS maps and the transfer documents. Again I'd be grateful to know if you think any of these can be resolved without expensive and lengthy legal transactions.

Best wishes.

Jonathan Pope

Land Registry to CMC :

Dear Mr Pope,

Thank you for your email below, and additional information provided.

1. I have re-investigated the files of BM323391, Mr McCanns' title, and although it may never have been the intention to transfer the ground floor entrance way to Mr. McCann, unfortunately the transfer gave a description of the land to be transferred as being edged red on plan A, and the body of the deed made no reference to the exclusion of any land within the red edged extent. Any other markings shown on the transfer plan are irrelevant as the basis of the extent is described in the deed as "edged red". The title plan of BM323391 was completed correctly in accordance with the Transfer dated 5 January 2007.

Therefore, to remedy the situation it will be necessary for a further deed to be prepared to rectify the position. An application for alteration of the register will then be required to bring the title plan up to date by recording the changes made by the further deed.

2. The decision to re-consider the position of one of the areas tinted blue on my original illustrative plan, being one of the areas fall within Mr Hallams garden, does not affect the problems that arise on the rest of the estate. Although the Ordnance Survey did indeed update their map to show the building in a more accurate position, affecting the corner of Mr Hallams property, it does not alter the

fact that even with this update, the fencing of all the properties involved was not erected in the positions shown on the relevant transfer plans.

In order to rectify the all the points raised in my previous correspondence, unfortunately, as mentioned in point 1 above, it will be necessary for further deeds to be prepared.

I will send a copy of my points above to your solicitors.

Your application is due for cancellation on 15 July 2014. As it seems this may take quite a while to resolve, your application will be cancelled and returned to you solicitor after this date. It would seem sensible to lodge applications to resolve the extents of the individual plots first, then your re-lodged application will proceed unhindered.

If you require any further assistance whilst trying to resolve the issues, please do not hesitate to contact me further.

Yours faithfully,

Wendy Kent

9 July 2014 : Telephone conversation with Land Registry confirms they are willing to grant an extension until 31st July and would accept either of the two options set out in J Pope Briefing Note.

From Land Registry to CMC :

Dear Mr Pope,

I refer to our telephone conversation today regarding a further extension of time for your application.

In view of the complexity of the situation, and all your efforts to deal with the matter promptly, I can confirm that we can grant a further extension.

Your application will be held until **31 July 2014** to allow you time to meet with the residents and confirm to us if you wish to proceed with your application on the basis of the current Transfer plan (i.e. as shown edged red on my illustrative plan attached to letter to your solicitors dated 17 June 2014, **including** the areas tinted blue but **excluding** the areas tinted pink and brown.)

I will inform your solicitors of the new cancellation date.

Yours sincerely

Wendy Kent